

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zahraa Abdur-Rahman	Team: Team # 8	CCRB Case #: 200104702	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 06/25/2001 7:30 PM	Location of Incident: Beach 20th Street off Mott Ave. and 101 PCT	Precinct: 101	18 Mo. SOL 12/25/2002	EO SOL 12/25/2002	
Date/Time CV Reported Mon, 06/25/2001 9:34 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/25/2001 9:31 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Torres	26514	898650	101 PCT
2. LT Michael Barreto	00000	901152	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Kristin Klimkoski	31280	917827	101 PCT
2. LT James Fitzgerald		875306	103 PCT
3. SGT Patrick Kenney	05169	905358	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Michael Barreto	Abuse: LT Michael Barreto stopped the car in which § 87(2)(b) was an occupant.	
B.LT Michael Barreto	Abuse: LT Michael Barreto authorized the issuance of summonses to § 87(2)(b)	
C.POM Joseph Torres	Abuse: PO Joseph Torres issued summonses to § 87(2)(b)	
D.LT Michael Barreto	Abuse: LT Michael Barreto did not provide his name to § 87(2)(b)	
E.POM Joseph Torres	Abuse: PO Joseph Torres did not provide his name and shield number to § 87(2)(b)	

Synopsis

§ 87(2)(b) and § 87(2)(b) § 87(2)(b) alleged that on June 25, 2001, Lt. Michael Barreto and PO Joseph Torres stopped § 87(2)(b) in his vehicle on Beach 20th St. in Queens without cause. § 87(2)(b) further alleged that when she went to the 101st Pct, Lt. Barreto and PO Torres refused to provide their names and shield numbers. § 87(2)(b) § 87(2)(b) § 87(2)(b) agreed to mediation. However, the case was later rejected by ADR because of PO Torres' CCRB history. § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b), a § 87(2)(b) Black man who works as a § 87(2)(b), was interviewed at the CCRB on June 29, 2001 (Enc. 6A-6E). He stated that on June 25, 2001, at approximately 7:30 p.m., he was pulled over by two police officers on Beach 20th St. off Mott St. in Far Rockaway, Queens. He was driving a dark blue Mercedes Benz SUV and had just turned right onto Beach 20th St. when Lt. Barreto and PO Torres emerged from their vehicle, which was parked in front and to the right of him, and approached his vehicle. Beach 20th St. is very narrow, and has only one driving lane and one parking lane. The officers stood in the middle of the street and shouted for § 87(2)(b) to stop, which he did. As they approached his driver's side front window, Lt. Barreto asked for his driver's license and insurance card. § 87(2)(b) provided the paperwork and asked the officers why they had stopped him. They told him that it was a police checkpoint, but § 87(2)(b) saw no flares, cones, barriers, other police vehicles, or anything else to indicate to him that the officers were being truthful and that there was indeed a checkpoint in place. § 87(2)(b) stated that he felt he was being singled out for racial profiling, because he was a black man driving an expensive vehicle through a neighborhood known for drug problems. He also acknowledged that his vehicle is rare in the neighborhood and tends to attract attention.

The two officers examined the paperwork § 87(2)(b) had given them, and Lt. Barreto began to question him about who owned the vehicle and whether or not the owner knew that he was driving it. § 87(2)(b) informed the officers that since all of his information was in order and he was in lawful possession of the vehicle, he did not want to answer any further questions. He stated in his interview that the car was registered in his cousin's name, but that he and his wife were listed on the insurance as authorized drivers and the license plates were registered to them. Lt. Barreto stated, "I can stop anybody I want to stop, and I stopped you." § 87(2)(b) informed the officers that he was going to pull over into the parking lane behind their police vehicle. At this point, § 87(2)(b) saw Lt. Barreto get on his radio and call for backup. They had no further conversation until an unmarked vehicle pulled up behind him a few minutes later, and a White female officer later identified as PO Klimkoski emerged and walked up to § 87(2)(b)'s front passenger window with her left hand resting on her holstered gun. She asked § 87(2)(b) to lower his back windows, which he states were already lowered halfway. As PO Klimkoski kept watch, both PO Torres and Lt. Barreto walked back to the unmarked car, which was about two car lengths behind § 87(2)(b)'s vehicle, and § 87(2)(b) assumed that they were running his license plates. This was his second indication that there had in fact been no legitimate checkpoint in place, because PO Torres and Lt. Barreto did not seem to be equipped to run a license check from their vehicle. § 87(2)(b) stated that there were two other officers in the car, but they never came out of the vehicle.

After the officers ran his license plate number, § 87(2)(b) saw PO Torres get in his vehicle and drive off. He returned a few minutes later with a tint meter. The officers placed the meter over the windows and took readings of the amount of tinting. Lt. Barreto then turned his attention to an NYPD parking plaque, which was located on the dashboard near the center of § 87(2)(b)'s front windshield. The officers asked how § 87(2)(b) had come into possession of the plaque, and he explained that it had been issued as a courtesy to his wife, § 87(2)(b) who was a § 87(2)(b). The officers asked § 87(2)(b) to give it to them, but he refused. PO Torres then reached his right arm and a portion of his head into the driver's side window and removed the plaque.

PO Torres issued § 87(2)(b) three tickets for excessive tint. § 87(2)(b) felt that the tickets were used as a justification for an improper stop, because his windows were all factory issued, and his front windows, one of which was ticketed, were clear and not tinted at all. § 87(2)(b) called his wife on his cell phone and told her that they would meet at the precinct to pursue the matter of the confiscation. After issuing the summonses, the officers left. When § 87(2)(b) arrived at the precinct a few minutes later and met his wife, he parked about halfway down the block from the precinct. § 87(2)(b) saw Lt. Barreto and PO Torres park in front of the precinct and pointed out the two officers to his wife. The officers entered the precinct a few minutes after the § 87(2)(b)'s. Once inside the precinct, § 87(2)(b) approached Lt. Barreto and asked him a question, which § 87(2)(b) did not hear. He did see Lt. Barreto throw up his hands and walk away from § 87(2)(b) in a discourteous manner. § 87(2)(b) called the CCRB the same evening that the incident occurred. He identified Lt. Barreto by his shield, which was visible during the car stop. He obtained PO Torres' name because PO Torres signed the summonses. § 87(2)(b) then called the police department to make his complaint later that same evening. § 87(2)(b)'s court date to dispute the summonses was pushed back until December due to the attacks of September 11. The hearing was later re-scheduled at PO Torres' request for § 87(2)(b).

On § 87(2)(b) § 87(2)(b) gave a statement to the traffic court judge presiding over his hearing at the Far Rockaway office of the Department of Motor Vehicles (Enc. 6F-6G). The undersigned observed the proceeding, although no recording devices were permitted. During this hearing, § 87(2)(b) disputed the validity of the summonses, stating that there was no checkpoint at the scene of the incident, that his front windows were not tinted, and that the summonses were issued in retaliation for his having questioned the officers' authority. § 87(2)(g)

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§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b) § 87(2)(b) in Queens. She was interviewed at the CCRB on June 29, 2001 (Enc. 7A-7D). § 87(2)(b) is a petite black woman with curly brown hair. Both she and her husband called the CCRB on the evening of June 25, 2001, the date of the incident, to file a complaint against Lt. Barreto and PO Torres. § 87(2)(b) stated that at around 7:30 p.m., she received a call from her husband § 87(2)(b) on his cell phone. § 87(2)(b) informed her that he was in his Mercedes Benz SUV and had been pulled over by two police officers § 87(2)(b). § 87(2)(b) further indicated to his wife that although the officers claimed they had stopped him pursuant to a police checkpoint, he saw no evidence of such a checkpoint and, in fact, seemed to be the only vehicle that had been stopped. As § 87(2)(b) listened on the other end of the phone, she heard her husband ask one of the officers for his name, and the officer replied, "I'll be back to talk to you." § 87(2)(b) heard the officers inquire about an NYPD parking plaque that was displayed in the front window of the § 87(2)(b)'s vehicle. The plaque had been given to § 87(2)(b) as a courtesy from her job as a § 87(2)(b). She told her

husband to give the officers the plaque and that she would meet him at the 101st Pct. to find out why the plaque had been taken and to get it back.

When the § 87(2)(b) met each other in front of the precinct a few minutes after the stop, they saw PO Torres and Lt. Barreto pull up in their police vehicle, disembark, and enter the precinct a few minutes later. § 87(2)(b) pointed out the officers who had pulled him over and identified Lt. Barreto by name, and § 87(2)(b) then approached Lt. Barreto and explained that the plaque which had been taken from the vehicle belonged to her and had been issued as a courtesy to her from the 103rd Pct. Lt. Barreto went behind the desk and started fumbling with papers, refusing to answer § 87(2)(b) when she asked him to verify his name. She then turned to PO Torres and asked for his name at least twice, but he, too, refused to identify himself and remained silent. She could not identify him from his shield because he was wearing a bike-style NYPD uniform, which included a dark T-shirt with the NYPD logo and shorts, but no badge. PO Torres told her that his name was on the summonses he had issued her husband. When § 87(2)(b) discovered from the summons that his name was PO Torres, she returned and asked him if he was George Torres. § 87(2)(b) However, PO Torres just told her, "Officer is good enough." She told him that she wanted his badge number, but he did not give it to her. Later that evening, § 87(2)(b) called CCRB to file her complaint.

During the course of the investigation, § 87(2)(b) alleged that she was being treated in a hostile and intimidating manner by some of the officers at the 103rd Pct., who had informed her that they knew about her husband's encounter with Lt. Barreto and PO Torres. § 87(2)(g)

Results of Investigation

Civilian Interview

§ 87(2)(b)

§ 87(2)(b), was interviewed by phone on July 20, 2001 (Enc. 14G). § 87(2)(b) said that Lt. Fitzgerald issued the parking plaque, and later discussed with her his awareness of the incident involving § 87(2)(b). When § 87(2)(b) told § 87(2)(b) about the incident, she asked § 87(2)(b) to intervene on her behalf to get the plaque returned to her, but Lt. Fitzgerald denied that request. § 87(2)(b) stated that § 87(2)(b) was a reliable and honest employee, and that she fully credited her version of events.

Officer Interviews

Lt. Barreto

Lt. Michael Barreto was interviewed at the CCRB on July 24, 2001 (Enc. 8A-8G). On the date of the incident, June 25, 2001, Lt. Barreto was platoon commander, and PO Torres was working as his driver. PO Torres was wearing a bicycle uniform, which includes shorts. According to Lt. Barreto, they had been patrolling an area within the confines of the 101st Pct in South Queens for several hours when he decided to establish a vehicle checkpoint with a single vehicle on Beach 20th St. between Mott Ave. and Cornaga Ave. According to Lt. Barreto's memo book entry, the checkpoint commenced at 7:22 p.m. They put on their turret lights, but did not set up any cones, flares, tape, etc. PO Torres had just pulled over and parked the vehicle three or four feet off the curb when they saw a blue minivan or truck approach. Although this was

not the first vehicle that had passed since they arrived at the designated location, it was the first one that passed after they got out of the police vehicle and were ready to conduct the checkpoint. Lt. Barreto decided to stop the vehicle, but he could not see who was driving it. The officers approached the vehicle, and Lt. Barreto spoke to the driver, later identified as § 87(2)(b).

§ 87(2)(b) asked why he was being stopped when the officers had let the vehicle in front of him pass. Lt. Barreto replied, "Because you're the first car we stopped. We just started this vehicle checkpoint, and you're the first car we stopped." § 87(2)(b) then replied, "You're stopping me because I'm Black and I'm driving this car." Lt. Barreto denied this and told § 87(2)(b) that if he simply provided the documents requested, he could be on his way. § 87(2)(b) handed over his license, and Lt. Barreto reviewed it. When Lt. Barreto asked for the rest of the paperwork, § 87(2)(b) said, "You fucking dicks!" Lt. Barreto asked, "Are you calling me a dick?" § 87(2)(b) responded, "No. I just said fucking dicks." Lt. Barreto then walked to the front of the vehicle and saw an NYPD parking permit displayed on the visor. He went back around to § 87(2)(b)'s window and asked if he was a member of service. § 87(2)(b) replied, "What's it to you?" Lt. Barreto explained that if § 87(2)(b) were a member of service, as a courtesy, he would be permitted to leave. At this time, § 87(2)(b) revealed that he was not a police officer, § 87(2)(b). He pulled out his insurance card, and Lt. Barreto saw that the owner of the car was § 87(2)(b), § 87(2)(b)'s wife. Lt. Barreto entered his vehicle, and then got on his cell phone and called the § 87(2)(b) which had issued the parking plaque in question. He spoke to a desk sergeant who confirmed that there was an § 87(2)(b) who worked at that command. As Lt. Barreto exited the police vehicle, he saw PO Torres take the parking plaque out of § 87(2)(b)'s car.

§ 87(2)(b) then made a call on his cell phone, while PO Torres drove the police car back to the precinct to get a tint meter. PO Torres came back from the stationhouse within a few minutes and used the meter to determine that all of § 87(2)(b)'s windows were excessively tinted, but he only issued summonses for three of them. He was warned and admonished for one other window, which was on the front passenger side. When asked why § 87(2)(b) was not issued summonses for all four windows, Lt. Barreto stated, "I was being nice." He was not warned and admonished for anything else.

Lt. Barreto and PO Torres went back to the 101st Pct. Lt. Barreto saw § 87(2)(b) and § 87(2)(b) enter the stationhouse. Lt. Barreto gave the plaque to the Integrity Control Officer, Lt. Seffens. Lt. Barreto then approached § 87(2)(b) who was in the waiting area, and asked if she was a member of service. She answered that she was not. Lt. Barreto told her to take a seat and walked away. As Lt. Barreto walked away, § 87(2)(b) started screaming and cursing, protesting the summonses. She said, "This is fucking bullshit! Why the fuck we got tickets for?" At this point, § 87(2)(b) and § 87(2)(b) left the precinct.

Lt. Barreto stated that he filled out the official vehicle checkpoint form after the stop, which is his normal procedure. He further stated that § 87(2)(b) was the only motorist he stopped during the checkpoint because he wanted to get back to the precinct to speak with § 87(2)(b) whom he assumed would show up to discuss the parking plaque. He thought that PO Torres' shield number was printed on his shirt, but Lt. Barreto could not recall whether or not the bicycle uniform shirt featured PO Torres' name.

Lt. Barreto initially said that this checkpoint was established only for the purpose of checking for valid driver's licenses, registration, and insurance cards and to make sure that the passing vehicles had no exterior violations. He stated that no computer was necessary for this purpose and that he decided to initiate the checkpoint after he left the precinct that day. However, when presented with the official vehicle checkpoint form he had filled out, Lt. Barreto recalled that the checkpoint might have been established for GLA – Grand Larceny Auto. He stated that frequent car stops deter robberies, which have been a growing problem in the area.

He stated that § 87(2)(b) never asked him for his name, and never complained that he had refused to identify himself. According to Lt. Barreto, he never ignored § 87(2)(b) and he never told § 87(2)(b) that the plaque was being confiscated because of § 87(2)(b)'s discourtesy to the officers. In fact, he said that the plaque was confiscated only because it was not authorized to § 87(2)(b).

PO Torres

PO Joseph Torres was interviewed at the CCRB on July 20, 2001 (Enc. 9A-9G). PO Torres did not know why the roadblock that led to the incident with § 87(2)(b) had been established. He stated that Lt. Barreto announced that they were initiating a checkpoint after they had left the precinct. Lt. Barreto and PO Torres had been at the location of the checkpoint for less than two minutes when they saw § 87(2)(b) drive along Beach 20th St. in his Mercedes Benz truck. Two other vehicles had passed before him, but PO Torres stated that the officers did not have time to stop either of those vehicles. The officers turned on the lights on their vehicle, but there were no other visual indicators of a checkpoint, such as cones, flares, or additional police vehicles. When Lt. Barreto saw § 87(2)(b)'s truck, he said, "That's the first car we're going to stop," and the officers indicated for § 87(2)(b) to stop his vehicle in the middle of the street.

Lt. Barreto asked § 87(2)(b) for his license and registration, but § 87(2)(b) could not produce proof of registration. He stated, "This is bullshit! You guys are only stopping me because I'm Black." When Lt. Barreto told him that he had been stopped because he was the first vehicle in a vehicle checkpoint, § 87(2)(b) countered that he had just seen a vehicle go by in front of him without being stopped. § 87(2)(b) while still fumbling in his wallet for the documents required, said, "Fucking dicks." Lt. Barreto asked him to repeat himself, but § 87(2)(b) just said, "I didn't say you guys were fucking dicks. I just said fucking dicks." PO Torres went around the back of the vehicle, entered the police vehicle to run the license plate number, and he discovered that the vehicle belonged to § 87(2)(b). When he came back around to the front, he and Lt. Barreto simultaneously noticed that there was an NYPD parking plaque displayed in the front window of the vehicle. Lt. Barreto asked if § 87(2)(b) was a police officer. § 87(2)(b) responded by saying, "I don't have to tell you that." At this time, PO Torres observed that § 87(2)(b)'s license plate number was written on the front of the plaque, but he suspected that the plaque might have been stolen. His suspicion was further aroused by § 87(2)(b)'s hostile attitude. According to PO Torres, "People who are legitimate usually don't give you that type of an attitude." Lt. Barreto placed a call to the § 87(2)(b) and determined that the plaque had been issued to § 87(2)(b)'s wife, § 87(2)(b) a § 87(2)(b). PO Torres stated that at this point, it was clear that neither of the § 87(2)(b) were police officers.

Because PO Torres had forgotten to bring the glass gauge that is used to test the accuracy of the window tint meter, he drove back to the precinct, retrieved the gauge, and then drove back to the location of the roadblock. PO Torres, who stated that he had received NYPD training in the use of tint meters, determined that four windows were excessively tinted, but he only issued summonses for three, and warned and admonished § 87(2)(b) for the other one. PO Torres further noticed that § 87(2)(b) had some type of tinting over his front and back license plate covers, for which he was also warned and admonished. At that point Lt. Barreto told PO Torres to confiscate the plaque because he did not like § 87(2)(b)'s "sarcastic" attitude. PO Torres told § 87(2)(b) to hand over the plaque. When § 87(2)(b) refused, PO Torres reached his head, arm, and upper body into the vehicle, took the plaque off the dashboard, and handed it to Lt. Barreto.

At some point near the conclusion of the stop, Lt. Barreto called for a sector car to come and assist him with a computer check of § 87(2)(b)'s license. When the unmarked car arrived, PO Klimkoski and her partner helped PO Torres and Lt. Barreto run a license and warrant check on § 87(2)(b). PO Torres stated that they had called for the sector car because the police vehicle that he had been driving was not equipped with a computer.

After PO Torres and Lt. Barreto finished their detention of § 87(2)(b) Lt. Barreto decided that the roadblock was terminated. A few minutes after returning to the precinct, PO Torres went behind the front desk and saw § 87(2)(b) for the first time. She asked him why he had taken her parking plaque, and he told her that Cpt. Talibur had already spoken with someone at the 103rd Pct. § 87(2)(b) and had told the captain to take the plaque away from her. § 87(2)(b) made a call from her cell phone, and PO Torres heard her say, "I don't know which Torres it is."

She then turned to PO Torres and said, "Officer, is your name George?" PO Torres told her, "You know my last name, you see my shield number, and my tax number is on the summons that I issued. I am identified." (However, when questioned, PO Torres admitted that he was not sure which uniform he had been wearing that day, and he may have been in his bicycle uniform, which he routinely wears and which is not accompanied by a shield.) PO Torres stated that had § 87(2)(b) been more polite and cooperative and given all the information that was requested of him, the plaque would never have been taken.

§ 87(2)(b) PO Torres testified against § 87(2)(b) at the Far Rockaway office of the Department of Motor Vehicles in a hearing for the three summonses (Enc. 9H-9I). During the hearing, PO Torres testified under oath that the purpose of the vehicle checkpoint was vehicle safety, that the conditions of the checkpoint were every third car, and that § 87(2)(b) was stopped because he was driving the third car to pass the checkpoint. He gave the readings of his tint meter, which he testified was properly calibrated and tested at the time of the stop. PO Torres testified that he had been trained by the NYPD in the use of tint meters and radar equipment. § 87(2)(b) was allowed to question PO Torres, and asked why his vehicle had been the only one stopped. PO Torres replied that the incident with § 87(2)(b) had taken all the time allotted for the checkpoint, so there was not time to stop other cars.

PO Klimkoski

PO Kristin Klimkoski was interviewed at the CCRB on July 27, 2001 (Enc. 11A-11D). She stated that she was riding with Sgt. Kenney when they received a radio call from Lt. Barreto to assist in a car stop at Beach 20th St.. When she arrived, she saw Lt. Barreto and PO Torres detaining § 87(2)(b)'s SUV, but she did not notice what type of uniform PO Torres was wearing, nor whether or not he was wearing a shield. She exited her vehicle and stood by § 87(2)(b)'s driver's side window while Lt. Barreto entered her police vehicle and ran a license check on § 87(2)(b). When PO Klimkoski asked § 87(2)(b) to lower his back windows, § 87(2)(b) was hesitant to follow her order and questioned why he had to do as she told him. However, he complied. At this time, PO Torres drove back to the precinct to get a tint meter. When he returned, PO Klimkoski and Sgt. Kenney left the scene of the incident. PO Klimkoski stated that she did not witness the issuance of the summons, nor did she hear any conversation between § 87(2)(b) and either PO Torres or Lt. Barreto. She further stated that Sgt. Kenney never got out of the police car during the incident.

SGT Kenney

SGT Kenney was interviewed at the CCRB on February 4, 2002 (enc. 12A-12D). § 87(2)(g) SGT Kenney stated that he never exited his vehicle during the time that he was present at the scene of the incident and did not hear the conversation between § 87(2)(b) and any officer. He stated that when Lt. Barreto entered his vehicle to conduct the license check on § 87(2)(b) he expressed distress at § 87(2)(b)'s behavior. According to SGT Kenney, Lt. Barreto stated that § 87(2)(b) was "giving him a hard time," and SGT Kenney observed that Lt. Barreto was upset because § 87(2)(b) had an NYPD parking plaque, but was treating a member of the Department (Lt. Barreto) without respect. SGT Kenney did not observe PO Torres measure the tint on the windows of § 87(2)(b)'s vehicle or confiscate the plaque. He did not witness the issuance of the summons. He also stated that he was not familiar with Lt. Barreto because Lt. Barreto was new to the command at the time of the incident.

Lt. Fitzgerald

Lt. James Fitzgerald, the ICO of the 103rd Pct., was interviewed at the CCRB on July 27, 2001 (Enc. 10A-10D). (Lt. Fitzgerald was not present during the incident which led to the complaint, § 87(2)(g))

§ 87(2)(b) Lt. Fitzgerald stated that he issued an NYPD parking plaque to § 87(2)(b) § 87(2)(b)

§ 87(2)(b). According to his telephone log, a call was placed to the precinct on June 25, 2001 regarding the plaque. According to Lt. Fitzgerald, the plaque should have been vouchered by the property clerk of the 103rd Pct. or still at the 101st Pct. at the time of the interview.

Police Documents

The records obtained from IAB regarding this incident include a log from the 103rd Pct. (Enc.13A), which lists § 87(2)(b) as a recipient of a police parking plaque, a copy of each of the three summonses issued to § 87(2)(b) (Enc. 13C-13F), and the roll call from the 101st Pct on June 25, 2001 (Enc. 13J-13K). Also included are an MISD print-out (Enc. 13I), indicating that Lt. Barreto and PO Torres did not run a warrant check on § 87(2)(b) on the night of the incident, the phone log of the 103rd Pct., which lists the call made by Lt. Barreto to inquire about the plaque (Enc. 13B), and the vehicle checkpoint form (Enc. 13L). The vehicle checkpoint form indicated that the purpose of the checkpoint was “GLA” and it lasted for five minutes. Also included with the officers’ interviews are the memo book entries of each of the officers interviewed.

Additional Documentation

In addition to police documents, also included in the case file are photographs of the § 87(2)(b) vehicle (Enc. 15A-15B), a print-out of § 87(2)(b)’s DMV history (Enc. 17A-17B), and a statement from § 87(2)(b)’s car dealership, stating that at the time the vehicle was serviced on August 15, 2001, there was no tinting on the front windows (Enc. 16).

Civilian Criminal Histories

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Police Officer CCRB Histories

Lt. Barreto and PO Klimkoski have no prior CCRB cases which have been substantiated. Seven allegations have been substantiated against PO Torres in two previous CCRB cases (Enc. 3B). In 1993, allegations of the use of force (punch/kick, push/shove, and other force), discourtesy, and offensive language in CCRB Case #9301214 were substantiated against PO Torres. There is no record available of whether or not PO Torres was disciplined in connection with Case #9301214. In 1998, allegations of discourtesy and using a radio as a club in CCRB Case #9805082 were substantiated, and PO Torres was found not guilty at his OATH trial. PO Klimkoski, Lt. Fitzgerald, and Sgt. Kenney have no CCRB cases in which allegations have been substantiated.

Conclusions and Recommendations

Assessment of Credibility

Civilians

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) A DMV check showed that the vehicle belonged to his cousin, as he had stated, and had been signed over to the

§ 87(2)(b) s. § 87(2)(g)

§ 87(2)(g)

Police Officers

§ 87(2)(g)

During his interview, Lt. Barreto stated that he could not recall the reason for the checkpoint, although he filled out the official Vehicle Checkpoint Form. When he was shown the form he filed and signed, his memory was refreshed, and he confirmed that he had initiated the checkpoint for the purpose of GLA (Grand Larceny Auto). He then stated that he frequently conducts GLA checkpoints because they are effective in lowering the incidence of car theft in the community. § 87(2)(g)

When asked how often he initiates such checkpoints, Lt. Barreto stated nearly every day, § 87(2)(g)

When asked why he initiated a vehicle checkpoint with only one police vehicle which was not equipped with a computer, Lt. Barreto stated that he did not need a computer to check for stolen vehicles; he could do so visually. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) Lt. Barreto, who stated that he filled out the form, wrote that the checkpoint took place on Beach 20th St. and New Haven Ave. New Haven Ave. is one block away from Cornaga Ave., and the incident occurred on Beach 20th St. between Mott Ave. and Cornaga Ave. The form also indicates that the checkpoint lasted from 7:20 p.m. to 7:35 p.m., although PO Torres stated that he issued the summonses between 7:40 p.m. and 7:45 p.m. His memo book confirms this. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) On the date of the incident, Lt. Barreto's tour was not scheduled to end until after 11:00 p.m., and PO Torres was scheduled to end his tour after 1:00 a.m. the following morning. According to Lt. Barreto, he returned to the precinct after the car stop to speak with § 87(2)(b) whom he assumed would be arriving shortly. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) In his interview, PO Torres stated that Lt. Barreto ordered him to remove the plaque from inside § 87(2)(b)'s vehicle. However, Lt. Barreto stated that he did not tell PO Torres to remove the plaque, and, in fact, was not even aware that PO Torres intended to remove the plaque until he saw PO Torres leaning into the driver's side window. § 87(2)(g)

§ 87(2)(g)

PO Torres' § 87(2)(g)

§ 87(2)(b) stated during his interview that he went into his police vehicle and ran § 87(2)(b)'s license information, thereby discovering the fact that the vehicle was owned by § 87(2)(b) and not § 87(2)(b). However, both PO Torres and Lt. Stated in their CCRB interviews that their police vehicle was not equipped to conduct a license check. In fact, Lt. Barreto conceded that this was the very reason that he called for back-up and requested that SGT Kenney conduct a check on § 87(2)(b). § 87(2)(g)

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

§ 87(2)(g)

PO Torres said in his CCRB interview that the first two cars that passed the “checkpoint” were allowed to proceed because he and Lt. Barreto did not have time to stop them, having arrived at the scene only minutes before. However, when § 87(2)(b) and the judge questioned him at the hearing, he replied that the two cars ahead of § 87(2)(b) were allowed to pass because the condition of the checkpoint was that every third car was to be stopped. § 87(2)(g)

[illegible]

PO Klimkoski, Sgt. Kenney, and Lt. Fitzgerald have no apparent interest in the outcome of the case. Lt. Fitzgerald, as of February 2002, has left the service. PO Klimkoski and Sgt. Kenney were only minimally involved in the incident, and stated that they did not observe much of the incident. § 87(2)(g)

Determinations of Fact

It is undisputed that on June 25, 2001, Lt. Barreto and PO Torres stopped § 87(2)(b)'s vehicle and issued him three summonses. It is also undisputed that Lt. Barreto and PO Torres returned to the precinct after the stop, where they encountered § 87(2)(b) and his wife § 87(2)(b), § 87(2)(g).

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Identification of Officers

§ 87(2)(b) learned Lt. Barreto's name when he requested it during the car stop, and Lt. Barreto identified himself. § 87(2)(b) identified PO Torres by his name and tax number, which were written on the summonses that he issued.

§ 87(2)(g)

Allegation A: Lt. Barreto stopped the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that Lt. Barreto and PO Torres stopped his vehicle and detained him without cause. § 87(2)(g)

According to Lt. Barreto, he stopped § 87(2)(b) because he and PO Torres were conducting a vehicle checkpoint. The reason for this checkpoint, according to the vehicle checkpoint form that he filled out, was to determine whether or not drivers in the area were in stolen vehicles. § 87(2)(g)

Lt. Barreto admitted that he did not have several key pieces of equipment in his police vehicle with which to conduct such an operation, such as a computer, a tint meter, traffic cones, or flares. § 87(2)(g)

When asked how many police vehicles are usually utilized during a checkpoint, Lt. Barreto stated at least two. However, he told investigators that he used just one vehicle because he was understaffed at the time and could administer a GLA checkpoint by visual inspection. During the stop, he found it necessary, though, to call a sector car to the scene, which contained PO Klimkoski and Sgt. Kenney. According to all accounts, PO Torres then drove back to the 101st PCt. to obtain tint-measuring equipment. § 87(2)(g)

§ 87(2)(g)

According to the Search and Seizure Law, "Most roadblocks are established pursuant to written directives of a police department or agency..." (Enc. 2H) § 87(2)(g)

§ 87(2)(g)

According to New York State Search and Seizure Law, "If the police have the discretion to select which cars they want to stop and which cars they will permit to pass, the procedure is arbitrary, and discriminatory, and will not be upheld by the courts." (Enc. 2G) It is undisputed that § 87(2)(b) was the only motorist to be stopped at the "checkpoint," although he was not the only motorist the officers encountered. § 87(2)(g)

§ 87(2)(g)

According to the New York Court of Appeals in *People v. Ingle*, 36 NY2d 413 (1975) (Enc. 2C-2E), "... a police officer may not stop an automobile for a 'routine traffic check'..." § 87(2)(g)

New York State Search and Seizure Law cites the New York Court of Appeals' decision in the *People v. Spencer*, 622 NYS2d 483 (1995), as follows, "police stops of automobiles in this state are legal only pursuant to routine, nonpretextual traffic checks to enforce traffic regulations." (Enc. 2K) § 87(2)(g)

Patrol Guide Interim Order No. 16 (Enc. 2A-2B), which states that in the Supreme Court decision *Indianapolis v. Edmund*, 531 U.S.(2000), "The Court... will not approve any checkpoint whose primary purpose is ultimately indistinguishable from the general interest of crime control (e.g. GLA or narcotics checkpoints)." § 87(2)(g)

. This order was issued on March 3, 2001; the vehicle stop in question took place on June 25, 2001. § 87(2)(g)

. According to New York State Search and Seizure Law, "[t]he stop of an automobile constitutes a seizure..." (Enc. 2F). According to Judge Charles R. Fraser in his decision in the case of *New York City Police Department v. Robert Dowd and Vincent Rose*, OATH Ind. Nos. 1189/90, 1190/90 (Enc. 2N -2P), "An officer is charged to know the law governing search and seizures... Failure to act in accordance with clear law will generally be presumed to involve fault... The more clearly improper a search or seizure appears, the more easily a fact finder will infer fault by the officer conducting the search or seizure." § 87(2)(g)

Patrol Guide Procedure 212-64 (Enc. 2X-2Z), which states that before a roadblock is initiated, a Vehicle Checkpoint Form is to be prepared by the commanding officer of the precinct, who designates the location, duration, purpose, and conditions of the roadblock, and then gives the form to the supervisor in charge of the checkpoint. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

according to Judge Fraser in PD v. Dowd and Rose (Enc. 20), "...an improper search or seizure is punishable misconduct if an officer acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper." § 87(2)(g)

Allegations B and C: Lt. Barreto and PO Torres issued a retaliatory summons to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) provided the undersigned with a statement from his car dealership (Enc. 16), where he requested a check of his window tinting. According to the statement, there was no tinting on the front windows as of August 15, 2001, and the tinting on the back windows was factory issued from the Mercedes Benz manufacturer. § 87(2)(g)

In their CCRB interviews, both officers stated that § 87(2)(b) was abusive toward them by using profane language. § 87(2)(g)

It is

undisputed that § 87(2)(b) was angry. § 87(2)(g)

It is also undisputed that § 87(2)(b) questioned the officers' authority to stop him and expressed his view that the stop was racially motivated. While PO Torres maintained that all of § 87(2)(b)'s windows were excessively tinted, he only issued summonses for three windows. When Lt. Barreto was questioned about this discrepancy, he replied that he had decided to give § 87(2)(b) a break. § 87(2)(g)

§ 87(2)(g)

Allegations D: Lt. Barreto did not provide his name upon the request of § 87(2)(b)

§ 87(2)(b) stated that Lt. Barreto refused to provide his name when she requested that he identify himself. According to the statement given by Lt. Barreto, § 87(2)(b) never asked him for his name, and he, therefore, did not refuse to identify himself. § 87(2)(g)

It is undisputed that the § 87(2)(b) were angry about the car stop and the removal of the plaque. It is also undisputed that she went to the precinct for the sole purpose of talking about the incident. (In fact, Lt. Barreto stated that he had truncated his "vehicle checkpoint" and returned to the precinct for the express purpose of meeting § 87(2)(b) at the stationhouse.) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

Allegation E: PO Torres did not provide his name and/or shield number upon the request of

§ 87(2)(b)

§ 87(2)(g)

[REDACTED]. According to Judge Rosemarie Maldonado in OATH case PD v. Matias (Index Nos. 1996/00 and 1997/00) (Enc. 2I-2K), in which NYPD Officer Matias was alleged to have refused to identify himself upon request, “Notwithstanding testimony that [the complainant] could see Officer Matias’ shield, respondent had an obligation to provide the information. Moreover, [the complainant] credibly testified that he obtained respondents’ names from a third officer close to the scene of the incident...” § 87(2)(g)

[REDACTED]

[REDACTED] Patrol Guide Procedure 203-09 (Enc. 2G), formerly Procedure 104-1 (Enc. 2H), which states “Give name and shield number to anyone requesting them.” According to Administrative Law Judge Faye Lewis in her ruling on Police Department v. Napoleoni, OATH Index Nos. 1815-16/00 (Enc. 2V-2W), “A demand for a badge number necessitates an affirmative response.” When a civilian requests that an officer identify himself or herself by name or badge number, “... “[An officer’s] failure to do so is not excused by the fact that his badge number was on the summons that he had issued.”

§ 87(2)(g)

[REDACTED]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: